PETRUS LOUW ERASMUS
versus
LOUIS PETRUS VAN DER MERWE
AND
MASVINGO BULL BREEDERS (PVT) LIMITED
AND
THREEWAYS (PRIVATE) LIMITED
AND
MINISTER OF AGRICULTURE, MECHANISATION AND WATER RESOURCES
AND
COMMISSIONER GENERAL OF THE ZIMBABWE REPUBLIC POLICE
AND
DEPUTY SHERIFF OF MASVINGO

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 29 APRIL and 4 MAY 2026

V Majoko, for the applicant
M. A Ruwita, for first, second and third respondents
L Dube, for fourth and fifth respondents

Urgent Court Application

NDUNA J: This court has been approached on an urgent basis by the applicant. The dispute involves cattle which are in the 1st Respondent's custody. The applicant claims to be the owner of a certain number of cattle. It is clear that relations between the applicant and the 1st Respondent have deteriorated. Their partnership appears to have failed. On the basis of that partnership, they have appeared before the courts on various occasions. The applicant is a South African national.

As stated above, this is an urgent application, and the requirements for such an application are well established. It must be accompanied by a certificate of urgency from a legal practitioner who certifies that the matter is urgent. Thereafter, the applicant annexes the application to the certificate. This was done in the present case. However, the Respondent has taken issue with the certificate, alleging that it was not properly prepared.

It is contended that the certificate merely reproduces portions of the applicant's papers verbatim, indicating that the legal practitioner did not apply his mind to the task. It is further alleged that, in that form, the certificate of urgency does not serve its intended purpose. This necessitates that the court consider and determine the adequacy of the certificate.

It is correct that the certificate is an extract from the applicant's papers, reproduced word for word. In response, the applicant contends that the certificate remains valid notwithstanding that form. The courts recognise that certain matters are time-sensitive, and that the court may be required to afford preference to an applicant in order to prevent prejudice or harm that may arise or continue if the respondent's alleged conduct persists unabated.

In *East Rock Trading 7 (Pty) Ltd and Another v Eagle Valley Granite (Pty) Ltd [2011] ZAGPJHC 196*, the court laid out the test for urgency.

> "An applicant has to set forth explicitly the circumstances which he avers render the matter urgent. More importantly, the Applicant must state the reasons why he claims that he cannot be afforded substantial redress at a hearing in due course. The question of whether a matter is sufficiently urgent to be enrolled and heard as an urgent application is underpinned by the issue of absence of substantial redress in an application in due course. The rules allow the court to come to the assistance of a litigant because if the latter were to wait for the normal course laid down by the rules it will not obtain substantial redress."

The foregoing must be read in the certificate of urgency. Before a court makes a determination on the merits of an urgent application, it must first consider whether the matter is sufficiently urgent to warrant placement on the urgent roll. Where an applicant fails to satisfy the court that he will not obtain substantial redress in due course, the matter will be struck off the roll. This enables the applicant to set the matter down again on proper notice and in compliance with the applicable rules as held in *SARS v Hawker Air Services (Pty) Ltd [2006] ZASCA 51; 2006 (4) SA 292 (SCA)*.

All the foregoing must be discernible from the certificate of urgency accompanying the application. It must therefore be independently prepared and considered. It is improper for it to consist merely of extracts copied and pasted from the applicant's main papers. The legal practitioner issuing the certificate of urgency must

have read and understood the matter and appreciated the basis upon which it should be accorded priority and heard ahead of others. It follows that such a legal practitioner must not simply reproduce portions of the applicant's papers. That does not demonstrate that an independent mind has been applied to the question of urgency.

In *General Transport & Engineering (Pvt) Ltd& Ors v Zimbank Corp (Pvt) Ltd 1998 (2) ZLR 301*, the court stated that:

> "Where the rule relating to a certificate of urgency requires a legal practitioner to state his own belief in the urgency of the matter that, invitation must not be abused. He is not permitted to make as his certificate of urgency a submission in which he is unable to conscientiously concur. He has to apply his own mind and judgment to the circumstances and reach a personal view that he can honestly pass on to a judge and which he can support not only by the strength of his arguments but on his own honour and name".

Clearly, where a legal practitioner merely reproduces what is stated in the applicant's papers, it cannot be said that he has applied his mind to the facts of the matter. That is contrary to the requirements of a certificate of urgency. It must be a document upon which the judge can properly rely. It cannot fulfil that purpose where it is simply copied from the litigant's submissions. It is necessary for a second person to consider the application and formulate an independent opinion on it. This objective is not achieved where the certificate is merely a copy-and-paste of the litigant's submissions.

I therefore agree that the certificate of urgency is defective and ought to be struck off the record. Once that is done, it follows that the application is left without a certificate of urgency. In the absence of such a certificate, the matter cannot be entertained as an urgent application.

This finding renders it unnecessary to consider the matter any further. The matter must accordingly be struck off the roll of urgent matters.

The Respondent has sought costs on the higher scale. However, that claim is founded solely on general submissions. The Respondent did not specifically address the issue of costs in a manner that clearly demonstrates the basis for awarding punitive costs. In the circumstances, it would not be appropriate to grant costs on that scale.

Accordingly, it is ordered that the matter be struck off the roll of urgent matters with costs on the ordinary scale.

Majoko and Majoko, applicant's legal practitioners
Coghlan, Welsh and Guest, first, second and third respondents' legal practitioners
Civil Division of The Attorney General, fourth and fifth respondents' legal practitioners